provision for NOTA has been made since General Elections to State Legislative Assemblies in 2013 and continued in the General Elections to State Legislative Assemblies in 2014 along with the General Elections to the Sixteenth Lok Sabha (2014).

Even if the number of electors opting for NOTA options is more than the number of votes polled by any of the candidates, the candidate who secures the largest number of votes has to be declared elected.

Introduction of VVPAT[25] The Voter Verifiable Paper Audit Trail is an independent system attached with the EVMs that allows the voters to verify that their votes are cast as intended. When a vote is cast, a slip is printed and remains exposed through a transparent window for seven seconds, showing the serial number, name and symbol of the candidate. Thereafter, the receipt automatically gets cut and falls into the sealed dropbox of the VVPAT. The system allows a voter to challenge his/her vote on the basis of the paper receipt.

The law for using VVPATs was amended in 2013. In 2013, the Supreme Court of India had permitted the ECI to introduce VVPAT in a phased manner, calling it 'an indispensable requirement of free and fair elections'. The Court had felt that introducing VVPAT would ensure the accuracy of the voting system and also help in manual counting of votes in case of dispute. The VVPATs were first used in bye-election to the Noksen Assembly Constituency of Nagaland held in 2013.

Persons in Jail or Police Custody Can Contest Elections In 2013,[26] the Supreme Court upheld an order of the Patna High Court declaring that a person who has no right to vote by reason of being in jail or in police custody, is not an elector and is, therefore, not qualified to contest the elections to the Parliament or the State Legislature. In order to negate this order of the Supreme Court, the following two new provisions[27] have been included in the Representation of the People Act, 1951:

1. The first provision expressly provides that by reason of the prohibition to vote (either due to in jail or in police custody), a person whose name has been entered in the electoral roll shall not cease to be an elector.

2. The second provision expressly provides that a Member of Parliament or the State Legislature shall be disqualified only if he/she is so disqualified under the provisions contained in the Act and on no other ground.

Consequently, the persons in jail or in police custody are allowed to contest the elections.

Immediate Disqualification of Convicted MPs and MLAs In 2013,[28] the Supreme Court held that chargesheeted Members of Parliament and MLAs, on conviction for offences, will be immediately disqualified from holding membership of the House without being given three months' time for appeal, as was the case before.

The concerned Bench of the Court struck down as unconstitutional Section 8 (4) of the Representation of the People Act (1951) that allows convicted lawmakers a three-month period for filing appeal to the higher court and to get a stay of the conviction and sentence[29].

In order to nullify the above ruling of the Supreme Court, the Representation of the People (Second Amendment and Validation) Bill, 2013 was introduced in the Parliament. However, the Bill was later withdrawn by the Government.